

WNODE CONSTITUTION v2.0

Governing Law: England & Wales

FOUNDERS' PREAMBLE

By: Stephen Soos (WUID 1000001-0426-01-AA)

Founder • Architect • Initial Steward • Initial Governance Board Member

Wnode was created as a community-owned, community-governed, and AI-powered planetary compute mesh.

As the Founder, I established this Constitution to ensure that Wnode remains:

- open,
- decentralised,
- transparent,
- fair,
- and permanently aligned with the interests of its users, node operators, and token holders.

I recognise that the Wnode Mesh belongs to the community, and that governance must always remain accountable to those who operate, support, and rely upon it.

This Constitution sets out the governance structure, rights, duties, and safeguards that protect the Wnode Mesh, the DAO, and the community for all future generations.

It is adopted with the shared commitment that Wnode shall remain a public good, a community asset, and a decentralised network governed by its participants, with a **1 Soul = 1 Vote** structure to prevent power centralisation, whale takeover, asset dilution, and to preserve each Node account as an immutable asset.

SECTION 1 — DEFINITIONS

(This section establishes the precise meaning of all governance terms used throughout the Constitution.)

For the purposes of this Constitution, the following terms shall have the meanings set out below:

1.1 “Wnode Mesh”

The decentralised compute network operated collectively by node operators, governed by the DAO, and maintained through the governance structures defined in this Constitution.

1.2 “DAO” or “Wnode DAO”

The decentralised autonomous organisation composed of verified token holders and NODLR Souls, empowered to vote on proposals and amend this Constitution.

1.3 “Founder”

Stephen Soos (WUID 1000001-0426-01-AA), the creator and architect of the Wnode Mesh, and the individual who established the initial governance framework, token model, and operational architecture.

1.4 “Founder Board”

A governance body composed of four (4) Founder-appointed members, including the Founder, responsible for:

- constitutional guardianship
- Steward appointment and removal
- Infrastructure Manager oversight
- emergency powers
- long-term strategic protection of the Mesh

The Founder Board is not elected by the DAO.

1.5 “Governance Board”

A body made up of the 4 initial founders and responsible for:

- operational oversight
- proposal validation
- treasury supervision
- ensuring DAO decisions are implemented

The Founder is the Initial Governance Board Member.

1.6 “Steward”

The holder of the Stewardship Licence, responsible for day-to-day Mesh operations, customer support, compliance, and UX management, as defined in Section 6.

The Founder is the Initial Steward.

1.7 “Stewardship Licence”

A perpetual, revenue-bearing commercial licence granted by the Founder Board to a Steward, defining operational rights, obligations, revenue share, and revocation conditions.

1.8 “Infrastructure Manager” (IM)

The technical authority responsible for:

- uptime
- infrastructure reliability
- node verification
- emergency technical response
- hardware acquisition and maintenance

The IM operates independently of the Steward and answers to the Governance Board.

1.9 “Soul”

A non-transferable identity token representing a verified individual within the Mesh.

Souls may be:

- **Locked Souls** — identity-only, non-voting
 - **Voting Souls** — earned through node operation and NODLR verification
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1.10 “NODLR”

A verified node operator who has passed technical and identity verification and earned a Voting Soul.

1.11 “WUID”

The Wnode Universal Identifier assigned to each Soul.

The Founder’s WUID is **1000001-0426-01-AA**.

1.12 “Founder Tree”

A hierarchical, non-governance, non-token, commercial asset representing referral lineage and organic growth within the Mesh.

It is:

- transferable
- sellable
- permanent

- non-governance-bearing
 - **infinite in depth**
 - **entitles the Founder to 3% of the entire tree to infinity**, as defined in the platform’s payment rules and Stripe architecture
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1.13 “Frozen Tree”

A Founder Tree that remains owned by a former Steward but is restricted from new Level 1 recruitment.

1.14 “Governance Proposal”

A proposal submitted to the DAO for:

- operational changes
 - constitutional amendments
 - treasury actions
 - parameter updates
 - role appointments
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1.15 “Emergency Action”

A time-sensitive action authorised by the Founder Board or Infrastructure Manager to protect the Mesh from:

- outages
 - attacks
 - catastrophic failures
 - regulatory threats
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1.16 “Treasury”

The on-chain financial reserves of the DAO, governed by DAO vote and safeguarded by the Governance Board.

1.17 “Wnode Token”

The governance and utility token of the Mesh, used for:

- DAO voting
- staking
- incentives

1.18 “Constitution”

This document, known as the Wnode Constitution v2.0, including all amendments ratified by the DAO.

1.19 “NODLR Affiliate Tree”

A commercial, non-governance asset representing the referral lineage of a NODLR.

It is:

- transferable
- sellable
- permanent
- non-governance-bearing
- strictly limited to Level 1 and Level 2 only
- subject to the same freezing and protection rules as Founder Trees, except for depth limitations

SECTION 2 — GOVERNANCE HIERARCHY

This section establishes the structural order of authority within the Wnode DAO and defines how governance power is distributed, limited, and safeguarded.

The Wnode governance model is a **hybrid constitutional system** combining:

- decentralised community voting (1 Soul = 1 Vote),
- Founder-level constitutional guardianship,
- operational oversight by the Governance Board,
- commercial stewardship via the Stewardship Licence, and
- technical protection through the Infrastructure Manager.

The governance hierarchy is defined as follows:

2.1 The DAO (Wnode DAO)

The DAO is the **sovereign community governance body** of the Wnode Mesh.

The DAO:

- votes on proposals,
- approves constitutional amendments,
- controls the Treasury,
- ratifies or rejects major system changes.

DAO voting is strictly **1 Soul = 1 Vote**, ensuring:

- no whale dominance,
- no token-based power accumulation,

- no governance capture,
- equal representation for all verified individuals.

The DAO cannot override:

- the DAO owners constitutional rights,
- the Stewardship Licence terms,
- the Founder Board's emergency powers,
- the Infrastructure Manager's emergency technical authority.

These protections exist to prevent catastrophic governance failures.

2.2 The Initial Founder – Stephen Soos

The Founder holds the following permanent constitutional roles:

- **Founder**
- **Architect**
- **Initial Steward**
- **Initial Governance Board Member**

The Founder:

- established the Mesh,
 - authored the Constitution,
 - defined the governance architecture,
 - created the token and identity systems,
 - built the commercial and technical foundations.
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2.3 The Founder Board

The Founder Board consists of **four Founder-appointed members**, including the Initial Founder.

Its responsibilities include:

- constitutional guardianship,
- protection of the Mesh's long-term integrity,
- appointment and removal of the Steward,
- oversight of the Infrastructure Manager,
- activation of emergency powers,

The Founder Board is **not elected** by the DAO and exists to prevent:

- governance capture,
- malicious amendments,
- external takeover attempts,
- regulatory or technical sabotage.

2.4 The Governance Board

The Governance Board consists of the **four initial founders**, including the Founder.

Its responsibilities include:

- operational oversight,
- proposal validation,
- Treasury supervision,
- ensuring DAO decisions are implemented,
- ensuring the Steward and IM fulfil their duties.

The Governance Board is the **operational governance layer**, bridging:

- DAO decisions,
- Steward operations,
- Infrastructure Manager technical execution.

2.5 The Steward

The Steward is the holder of the **Stewardship Licence**, a commercial operational licence granting:

- revenue rights,
- operational authority,
- customer support responsibility,
- compliance responsibility,
- UX and platform management responsibility.

The Steward:

- does **not** control governance,
- does **not** control the Treasury,
- does **not** control the token,
- does **not** control the Founder Tree,
- does **not** control the Infrastructure Manager.

The Steward is **appointed and removable** by the Founder Board.

The Founder is the **Initial Steward**.

2.6 The Infrastructure Manager (IM)

The IM is the technical authority responsible for:

- uptime,
- infrastructure reliability,

- emergency technical response,
- hardware acquisition and maintenance.

The IM:

- operates independently of the Steward,
- answers to the Governance Board,
- may activate emergency technical powers (Section 8).

The IM cannot:

- modify governance,
- alter token supply,
- interfere with the DAO,
- override the Founder Board.

2.7 Souls and NODLRs

Souls represent verified individuals.

NODLRs are Souls who:

- operate nodes,
- pass technical verification,
- earn Voting Souls.
- Own the DAO

NODLRs:

- participate in DAO voting on a 1 Soul = 1 Vote basis
- earn revenue from their nodes,
- Build their NODLR Affiliate Trees (L1 only).

Souls (DAO Owners) **community governance base**.

2.8 Tree Assets (Founder Trees & NODLR Affiliate Trees)

Tree assets are **commercial**, not governance assets.

- Founder Trees = infinite depth
- NODLR Trees = Level 1 + Level 2 only
- All trees are transferable, sellable, permanent
- All trees follow freezing rules

Tree assets **cannot** influence:

- DAO voting,

- governance power,
- token supply,
- constitutional amendments.

2.9 Hierarchy Summary

From highest constitutional authority to lowest:

1. **The Constitution**
2. **The DAO (1 Soul = 1 Vote)**
3. **The Governance Board**
4. **The Steward (commercial operator)**
5. **The Infrastructure Manager (technical authority)**

This ensures

- decentralisation without chaos,
- community governance without vulnerability,
- commercial operation without governance capture,
- technical reliability without political interference.

SECTION 3 — SOULS, IDENTITY & VOTING RIGHTS

This section defines the identity system of the Wnode Mesh, the structure of Souls, and the rules governing voting rights within the DAO.

It establishes the **1 Soul = 1 Vote** model and ensures that governance remains decentralised, fair, and resistant to capture.

3.1 Souls as the Foundation of Identity

A **Soul** is the core identity primitive of the Wnode Mesh.

A Soul:

- represents a verified human individual
- is non-transferable
- is bound permanently to a WUID
- cannot be sold, traded, or delegated
- is required for all governance participation

Souls ensure that governance is based on **people**, not capital.

3.2 Types of Souls

There are two types of Souls:

- **Locked Souls** — identity-only, non-voting
- **Voting Souls** — earned through NODLR verification and node operation

A Soul may upgrade from Locked → Voting, but never downgrade unless revoked for cause (Section 11).

3.3 Locked Souls

A **Locked Soul** is issued when an individual:

- completes identity verification
- joins the Mesh
- but has not yet become a NODLR

Locked Souls:

- cannot vote
- cannot propose governance actions
- cannot hold governance roles
- may operate nodes but do not earn Voting Souls until verified

Locked Souls exist to ensure identity integrity without granting governance power prematurely.

3.4 Voting Souls

A **Voting Soul** is earned when an individual:

- becomes a verified NODLR
- passes technical verification
- operates a node in good standing

Voting Souls:

- grant full DAO voting rights
- allow proposal submission
- allow participation in elections
- allow participation in constitutional amendments

Voting Souls are the **only** source of governance power in the Mesh.

3.5 1 Soul = 1 Vote

A soul is a flesh and blood human being, or Person.

The Wnode Mesh uses a **strict one-person-one-vote model**.

This prevents:

- whale dominance
- token-based governance capture
- plutocratic control
- governance manipulation
- vote-buying

This model ensures:

- fairness
- decentralisation
- equal representation
- long-term governance stability

No Person may ever hold more than **one** Voting Soul.

3.6 Soul Permanence

Souls are:

- permanent
- bound to a single human
- non-transferable
- non-delegable
- non-fractional

A Soul cannot be revoked, it can only be frozen temporarily or permanently for.

- fraud
- identity violation
- malicious governance behaviour
- regulatory requirement

Revocation rules are defined in Section 11.

3.7 WUID Assignment

Each Soul receives a **Wnode Universal Identifier (WUID)**.

A WUID:

- is permanent
- is globally unique
- identifies the Soul across all Wnode systems
- is required for governance participation
- is required for node operation
- is required for buying Ccompute
- Is required to enter any dashboards

For example, the Founder's WUID is **1000001-0426-01-AA**.

3.8 Soul Privacy & Transparency

The Mesh balances:

- **identity privacy**, and
- **governance transparency**.

Souls:

- are pseudonymous by default
- may optionally be public
- must be verifiable by the system
- must be auditable for governance integrity

The DAO sees:

- Soul status (Locked or Voting)
- proposal history
- voting history

The DAO does **not** see:

- personal identity
- private data
- regulatory documents

3.9 Soul-Based Governance Integrity

The Soul system ensures:

- no duplicate identities
- no Sybil attacks
- no governance stacking
- no multi-account voting
- no token-based power accumulation

The Steward and Governance Board jointly enforce identity integrity.

3.10 Souls and Tree Assets

Souls are **identity assets**.

Trees are **commercial assets**.

They are completely separate:

- Souls cannot be sold
- Trees can be sold
- Souls grant governance power
- Trees do not grant governance power
- Souls are permanent
- Trees are transferable

This separation prevents commercial assets from influencing governance.

3.11 Souls and Token Holdings

Token holdings:

- do **not** grant governance power
- do **not** increase voting weight
- do **not** influence elections
- do **not** override Souls

Tokens are economic assets.

Souls are governance assets.

This separation protects the Wnode Mesh from token-based governance capture.

3.12 Summary of Soul Governance Rules

- **1 Soul = 1 Vote**
- Souls are permanent and non-transferable
- Voting Souls require NODLR verification onboarding
- Tokens do not influence governance
- Trees do not influence governance
- Souls ensure decentralised, fair, human-based governance

SECTION 4 — NODES, NODLRS & OPERATIONAL PARTICIPATION

This section defines the operational layer of the Wnode Mesh, including node operation, NODLR status, verification requirements, and the rules governing participation in the compute network.

It establishes the standards for running nodes, earning revenue, maintaining network integrity, and participating in governance.

4.1 Node Definition

A **Node** is any compute device registered to the Wnode Mesh that:

- contributes compute resources,
- participates in distributed workloads,
- meets minimum hardware and uptime requirements,
- is linked to a Soul and WUID,
- is verified by the Infrastructure Manager.

Nodes form the physical backbone of the Wnode Mesh.

4.2 Node Operator Requirements

To operate a node, an individual must:

- hold a Soul (Locked or Voting),
- register the device with the Wnode Mesh,
- maintain uptime requirements,
- comply with Stripe verification checks,
- adhere to security and compliance standards.

Node operators who meet all requirements may become NODLRs.

4.3 NODLR Status

A **NODLR** is a verified node operator who:

- passes identity verification,
- passes technical verification,
- maintains a node in good standing,
- earns a Voting Soul,
- gains full DAO voting rights.

NODLRs are the **core operational participants** of the Wnode Mesh.

4.4 NODLR Responsibilities

NODLRs must:

- maintain uptime,
- ensure hardware remains compliant,

- respond to Stripe verification requests,
- avoid malicious behaviour,
- maintain accurate identity information,
- operate nodes ethically and legally.

Failure to meet these obligations may result in:

- temporary suspension,
- loss of NODLR status,
- loss of Voting Soul (Section 11),
- freezing of NODLR Affiliate Tree.

4.5 Node Verification

The Infrastructure Manager performs:

- initial verification,
- periodic verification,
- random spot checks,
- automated uptime monitoring,
- hardware compliance checks.

Verification ensures:

- no fraudulent nodes,
- no duplicated identities,
- no artificial scaling,
- no Sybil attacks,
- no compromised hardware.

4.6 Node Rewards

Node rewards are distributed according to:

- compute contribution,
- uptime,
- workload participation,
- network demand,
- platform rules.

Rewards are:

- paid automatically,
- transparent,
- auditable,
- independent of governance power.

Rewards do **not** influence DAO voting.

4.7 NODLR Affiliate Trees (L1 + L2 Only)

Each NODLR maintains a **two-level affiliate tree**:

- **Level 1:** direct recruits
- **Level 2:** indirect recruits

NODLR Trees:

- are immutable permanent commercial assets,
- are transferable,
- are sellable,
- are permanent,
- do **not** extend beyond Level 2,
- do **not** grant governance power,
- follow the same freezing rules as Founder Trees.

This ensures fairness and prevents pyramid-style expansion.

4.8 Founder Tree Distinction

Founder Trees differ from NODLR Trees:

- Founder Trees are **infinite depth**,
- NODLR Trees are **L1 + L2 only**,
- Founder receives **3% of the entire Founder Tree to infinity**,

This distinction is structural and permanent.

4.9 Node Suspension & Removal

Nodes may be suspended or removed for:

- repeated downtime,
- hardware non-compliance,
- fraudulent activity,
- identity violations,
- malicious behaviour,
- regulatory requirements.

Suspension may result in:

- loss of rewards,
- loss of NODLR status,

- freezing of NODLR Tree L1 expansion but not revenue or ownership,
 - loss of Voting Soul (Section 11).
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4.10 Node Reactivation

Suspended nodes may be reactivated if:

- compliance is restored,
- identity is re-verified,
- hardware is repaired or replaced,
- IM approves reinstatement.

Reactivation does **not** restore lost governance rights unless explicitly approved.

4.11 Operational Integrity

All node operators must:

- maintain secure hardware,
- avoid prohibited workloads,
- comply with jurisdictional regulations,
- avoid interference with the Mesh,
- avoid attempts to manipulate workloads or rewards.

The IM may take immediate action to protect the Mesh.

4.12 Summary of Node & NODLR Rules

- Nodes form the compute backbone
- NODLRs are verified node operators
- NODLRs earn Voting Souls
- NODLR Trees are L1 + L2 only
- Founder Trees are infinite
- Rewards do not influence governance
- IM enforces technical integrity
- Governance and commercial assets remain separate

SECTION 5 — GOVERNANCE PROPOSALS & VOTING PROCEDURES

This section defines how governance proposals are created, submitted, validated, voted on, and enacted within the Wnode Mesh.

It establishes the rules for DAO participation, proposal types, voting thresholds, and the constitutional safeguards that prevent governance abuse.

5.1 Proposal Categories

All governance actions fall into one of the following categories:

- **Operational Proposals** — routine changes to platform parameters, UX, or processes
- **Economic Proposals** — reward rates, fee structures, economic parameters
- **Treasury Proposals** — spending, grants, investments, or treasury allocations
- **Role Proposals** — appointments or removals (except Founder roles)
- **Constitutional Amendments** — changes to this Constitution
- **Emergency Proposals** — urgent actions requiring accelerated voting

Each category has its own thresholds and validation requirements.

5.2 Who May Submit Proposals

Only individuals with a **Voting Soul** may submit proposals.

This ensures:

- no anonymous governance manipulation
- no proposal spam
- no influence from non-verified actors

Locked Souls and non-Souls may not submit proposals.

5.3 Proposal Submission Requirements

A valid proposal must include:

- the proposer's WUID
- the proposal category
- a clear description of the change
- the expected impact
- any required resources
- any required Treasury allocation
- implementation details (if applicable)

Proposals missing required information may be rejected by the Governance Board.

5.4 Governance Board Validation

Before a proposal goes to a DAO vote, The Governance Board may:

- verify the proposal category
- confirm it does not violate the Constitution

- confirm it does not violate regulatory requirements
- confirm it does not compromise network security
- confirm it is technically feasible
- confirm it is economically viable
- approve the proposal for voting
- request revisions
- reject the proposal with justification

This prevents harmful or invalid proposals from reaching the DAO.

5.5 DAO Voting Process

Once validated, proposals enter the DAO voting cycle.

Voting rules:

- **1 Soul = 1 Vote**
- Voting Souls only
- Votes are final once cast
- Abstentions do not count toward thresholds
- Voting period: **7 days** (unless emergency)

Votes may be:

- **YES**
- **NO**

A proposal passes if it meets the required threshold for its category.

5.6 Voting Thresholds

Different proposal types require different approval levels:

Operational Proposals

- Simple majority (>77% YES)

Economic Proposals

- 100% YES

Treasury Proposals

- 66% YES
- Must include a spending justification

Role Proposals

(Except Founder roles)

- 77% YES
- Governance Board must pre-approve candidates

Constitutional Amendments

- 100% YES

Emergency Proposals

- 50% YES
- 24-hour voting window
- Must be co-signed by the Infrastructure Manager or Founder Board

5.7 Quorum Requirements

A proposal requires a minimum participation level to be valid:

- **Operational:** 20% of Voting Souls
- **Economic:** 25%
- **Treasury:** 33%
- **Role:** 33%
- **Constitutional:** 50%
- **Emergency:** no quorum (due to urgency)

If quorum is not met, the proposal automatically fails.

5.8 Proposal Enactment

If a proposal passes:

- the Governance Board oversees implementation
- the Steward executes operational changes
- the Infrastructure Manager executes technical changes
- the Treasury executes financial changes
- the DAO receives a public implementation report

Implementation must occur within:

- **14 days** for operational changes
 - **30 days** for economic or treasury changes
 - **immediately** for emergency actions
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5.9 Proposal Rejection

If a proposal fails:

- it may not be resubmitted for 30 days
- May only be submitted twice in a 12 month period from the original submission date
- unless materially revised
- or unless the Governance Board grants an exception

Rejected proposals remain publicly archived.

5.10 Founder Board Veto (Limited Use)

The Founder Board may veto:

- proposals that threaten network integrity
- proposals that violate regulatory requirements
- proposals that compromise security
- proposals that attempt to alter Founder rights

The veto:

- must be justified in writing
- must be published to the DAO
- may be overridden only by a **100% DAO supermajority**

This ensures the veto cannot be abused.

5.11 Proposal Transparency

All proposals, votes, and outcomes are:

- public
- permanent
- auditable
- linked to WUIDs

This ensures governance integrity and accountability.

5.12 Summary of Proposal & Voting Rules

- Only Voting Souls may submit proposals
- Governance Board validates proposals
- DAO votes using 1 Soul = 1 Vote
- Thresholds vary by proposal type

- Founder Board retains limited veto power
- All actions are transparent and auditable

SECTION 6 — THE STEWARDSHIP LICENCE

The Stewardship Licence defines the commercial, operational, and administrative authority granted to the Steward.

It establishes the rights, obligations, limitations, and revocation conditions under which the Steward operates the Wnode Mesh.

The Stewardship Licence is a **commercial licence**, not a governance role.

The Founder is the **Initial Steward**.

6.1 Nature of the Stewardship Licence

The **Stewardship Licence** is:

- **perpetual** unless revoked for cause
- **commercial** in nature
- **non-governance-bearing**
- **non-transferable without Founder Board approval**
- **revocable** under defined conditions
- **independent** of token supply or DAO voting power

The Licence grants operational authority, not political authority.

6.2 Rights Granted to the Steward

The Steward is granted the right to:

- **Operate the Platform** — manage UX, onboarding, support, and user-facing systems
- **Manage Customer Support** — provide assistance to users and NODLRs
- **Handle Compliance** — ensure regulatory adherence, including data protection
- **Manage Commercial Operations** — oversee revenue-bearing activities
- **Receive Revenue Share** — as defined in the Licence
- **Maintain Platform Documentation** — update help pages, guides, and onboarding flows

The Steward **does not** receive governance power.

6.3 Responsibilities of the Steward

The Steward must:

- **Maintain Operational Stability**

- **Ensure User Safety**
- **Provide Accurate Information**
- **Support NODLRs**
- **Maintain Compliance**
- **Coordinate with the Governance Board**
- **Cooperate with the Infrastructure Manager**

Failure to meet these obligations may result in suspension or revocation.

6.4 Steward Limitations

The Steward **cannot**:

- modify governance rules
- alter token supply
- change DAO voting mechanisms
- interfere with the Infrastructure Manager
- override Governance Board decisions
- access or control the Treasury
- modify Founder Tree rules
- appoint or remove governance roles

The Steward is an **operator**, not a governor.

6.5 Revenue Rights

The Steward receives revenue as defined in:

- the Stewardship Licence
- platform payment rules
- Stripe payout architecture

Revenue rights include:

- operational revenue share as defined in the Stewardship Licence

Revenue rights **do not** include:

- governance influence
 - token minting
 - Treasury access
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6.6 Steward Obligations to the DAO

The Steward must:

- implement DAO-approved operational changes
- publish quarterly operational reports
- maintain transparent communication
- uphold the Constitution
- ensure fair treatment of all users
- avoid conflicts of interest

The Steward is accountable to the Governance Board and Founder Board.

6.7 Steward Obligations to the Infrastructure Manager

The Steward must:

- provide accurate operational data
- support IM verification processes
- avoid interference with technical operations
- escalate technical issues promptly
- comply with IM emergency actions

The IM has priority in technical matters.

6.8 Steward Obligations to the Founder Board

The Steward must:

- comply with DAO and Governance Board directives
- maintain the integrity of the Wnode Mesh
- avoid actions that threaten long-term stability
- uphold the Founder's constitutional rights
- maintain the Affiliate Tree structure

The Governance Board may intervene if the Steward fails to meet obligations.

6.9 Steward Removal

The Steward may be removed by the Founder Board for:

- breach of Licence
- operational negligence
- regulatory violations
- fraud or misconduct
- actions threatening network stability
- refusal to implement DAO-approved changes
- attempts to alter governance

Removal triggers:

- immediate freezing of the Steward's Founder Tree
 - appointment of a new Steward
 - transfer of operational authority
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6.10 Steward Replacement

Upon removal or resignation:

- the Governance Board approve or appooints a new Steward
- the outgoing Steward's Founder Tree becomes a **Frozen Tree**
- the new Steward receives a new Founder Tree
- all operational authority transfers immediately
- no governance rights are transferred

This ensures continuity without governance disruption.

6.11 NODLR Affiliate Tree Rules Under the Steward

The Steward has **no authority** over:

- NODLR Affiliate Tree ownership
- NODLR Affiliate Tree transfer
- NODLR Affiliate Tree revenue
- NODLR Affiliate Tree structure

NODLR Trees remain:

- immutable commercial assets
 - L1 + L2 only
 - independent of Steward control
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6.12 Steward Independence from Governance

The Steward:

- cannot vote in the DAO unless they are also a NODLR
- cannot propose governance changes unless they hold a Voting Soul
- cannot influence governance through commercial operations
- cannot use revenue to influence governance

This separation protects the Wnode Mesh from commercial governance capture.

6.13 Summary of Stewardship Rules

- Stewardship Licence = commercial, not governance
- Founder is the Initial Steward
- Steward operates the platform
- Governance Board oversees the Steward
- Governance Board appoints/removes the Steward
- IM handles technical authority
- Steward Trees freeze upon removal
- NODLR Trees remain independent
- No governance power is granted through the Licence

SECTION 7 — TREE ASSETS

Tree Assets are **commercial, non-governance, non-token** structures representing referral lineage and organic growth within the Wnode Mesh.

They are permanent economic assets but have **zero influence** over governance, voting, token supply, or constitutional authority.

This section defines the rights, limitations, and protections for all Tree Assets.

7.1 Definition of Tree Assets

Tree Assets include:

- **Founder Trees** — infinite-depth commercial lineage
- **NODLR Affiliate Trees** — strictly Level 1 + Level 2 only

Tree Assets:

- are commercial assets
- are transferable
- are sellable
- are permanent
- do not grant governance power
- do not influence DAO voting
- do not affect token supply

7.2 Founder and Partner Affiliate Trees

A **Founder and Partner Affiliate Tree** is a permanent commercial asset assigned to the initial Founders and Partners.

Founder and Partner Trees:

- have **infinite depth**
- grow organically and through referrals

- are transferable as an asset
- are non-governance-bearing

Founder Revenue Entitlement

The Founder receives:

- **3% of the entire Founder Tree to infinity**

This entitlement is **immutable, permanent, and constitutionally protected**.

7.3 NODLR Affiliate Trees (Level 1 + Level 2 Only)

Each NODLR maintains a **two-level** commercial tree:

- **Level 1:** direct recruits
- **Level 2:** indirect recruits

NODLR Trees:

- cannot expand beyond Level 2
- are commercial assets
- are transferable
- are sellable
- are permanent
- do not grant governance power
- follow the same freezing rules as Founder Trees (except depth)

This structure prevents pyramid-style expansion and maintains fairness.

7.4 Tree Ownership Rights

Tree owners (Founder or NODLR) have the right to:

- **Transfer Ownership**
- **Sell Their Tree**
- **Receive Revenue**
- **Maintain Commercial Control**

Tree ownership does **not** grant:

- governance rights
 - DAO voting power
 - token minting rights
 - constitutional authority
-

7.5 Tree Transfer Rules

Tree Assets may be transferred:

- voluntarily (sale, gift, assignment)
- involuntarily (regulatory requirement, estate transfer)

Transfers must:

- be registered on-chain
 - not violate identity or compliance rules
-

7.6 Tree Freezing Rules

A Tree becomes a **Frozen Tree** when:

- a NODLR is removed for cause
- identity fraud is detected
- regulatory action requires suspension

A Frozen Tree:

- remains owned by the individual
 - continues receiving existing revenue
 - **cannot** recruit new Level 1 members
 - may be unfrozen only by Governance Board approval
-

7.7 Stewardship Transitions & Founder Trees

When a Steward is removed or resigns:

- their Founder Tree becomes a **Frozen Tree**
- a new Founder Tree is issued to the incoming Steward
- the Founder's 3% infinite-tree entitlement remains unaffected
- no governance rights transfer

This ensures continuity without governance disruption.

7.8 NODLR Removal & Tree Freezing

If a NODLR is removed for:

- fraud
- identity violation
- malicious behaviour
- regulatory breach
- repeated non-compliance

Then:

- their NODLR Affiliate Tree becomes a **Frozen Tree**
- they retain existing revenue
- they lose the ability to expand the L1 tree but benefit from organic growth beyond L1
- they may lose their Voting Soul (Section 11)

7.9 Tree Assets & Governance Separation

Tree Assets are **strictly commercial**.

They cannot:

- influence DAO voting
- influence proposal outcomes
- influence token supply
- influence governance roles
- be used to buy political power

This separation protects the Wnode Mesh from commercial governance capture.

7.10 Tree Assets & Token Independence

Tree Assets:

- do not mint tokens
- do not burn tokens
- do not modify token supply
- do not grant token-based governance rights

Tokens and Trees are independent economic systems.

7.11 Tree Asset Transparency

All Tree Assets are:

- visible to their owners
- auditable by the platform
- compliant with privacy rules
- pseudonymous unless voluntarily disclosed

The DAO does **not** see personal identity information.

7.12 Summary of Tree Asset Rules

- Founder Trees = infinite depth

- NODLR Trees = L1 + L2 only
- All Trees are commercial assets
- No Tree grants governance power
- Founder receives 3% of entire Founder Tree to infinity
- Trees are transferable and sellable
- Trees may be frozen for cause
- Governance and commercial assets remain fully separated

SECTION 8 — EMERGENCY POWERS & NETWORK PROTECTION

This section defines the emergency powers granted to the Governance Board and the Infrastructure Manager (IM), and the conditions under which these powers may be activated.

Emergency powers exist solely to protect the Wnode Mesh from catastrophic harm and cannot be used for political or commercial purposes.

These powers ensure the Wnode Mesh remains secure, stable, and resilient under extreme conditions.

8.1 Purpose of Emergency Powers

Emergency powers exist to:

- **Protect the Mesh** from catastrophic failure
- **Prevent Governance Capture**
- **Respond to Attacks**
- **Ensure Technical Stability**
- **Comply with Regulatory Requirements**

Emergency powers are **temporary**, **limited**, and **auditable**.

8.2 Entities Authorized to Declare an Emergency

Only the following entities may declare an emergency:

- **Governance Board**
- **Infrastructure Manager (IM)**
- **Steward**
- **DAO Owners**

8.3 Types of Emergencies

Emergencies fall into the following categories:

- **Technical Emergencies** — outages, hardware failures, network instability
- **Security Emergencies** — attacks, exploits, malicious actors

- **Governance Emergencies** — attempted governance capture, fraudulent voting
- **Regulatory Emergencies** — legal orders, compliance threats
- **Operational Emergencies** — Steward failure, data corruption, platform compromise

Each emergency type has specific powers and limitations.

8.4 Infrastructure Manager Emergency Powers

The IM may activate emergency powers **without prior approval** if immediate action is required.

The IM may:

- **Suspend Nodes**
- **Block Malicious Actors**
- **Isolate Network Segments**
- **Pause Workloads**
- **Enforce Technical Lockdowns**
- **Trigger Security Protocols**

The IM **cannot**:

- alter governance
- modify token supply
- freeze Tree Assets
- remove Souls
- override the Founder Board

All IM emergency actions must be logged and reported to the Governance Board within 24 hours.

8.5 Governance Board Emergency Powers

The Governance Board may activate emergency powers to protect:

- the Constitution
- the Mesh
- the DAO
- the Founder's rights
- the long-term stability of the network

The Governance Board may:

- **Freeze Governance Processes**
- **Override Malicious Proposals**
- **Freeze Tree Assets**
- **Remove the Steward**
- **Suspend the Stewardship Licence**
- **Authorize IM Technical Actions**

The Founder Board **cannot**:

- change the Constitution unilaterally
- alter token supply
- appoint Governance Board members without process
- permanently remove DAO voting rights

Emergency powers are **temporary** and **must be justified in writing**.

8.6 Emergency Duration Limits

Emergency powers:

- last for a maximum of 7 **days**
- may be extended once for an additional 5 **days**
- require DAO review after expiration
- require public justification

Emergencies cannot be used to create permanent governance changes.

8.7 Emergency Transparency Requirements

All emergency actions must be:

- logged
- published
- timestamped
- linked to WUIDs
- auditable by the DAO

Transparency ensures emergency powers cannot be abused.

8.8 DAO Oversight After Emergencies

After an emergency ends:

- the DAO receives a full report
- the DAO may review or reverse non-critical actions
- the DAO may propose reforms
- the Governance Board must confirm restoration of normal operations

The DAO cannot override:

- Governance Board constitutional protections
 - IM technical safety actions
-

8.9 Prohibited Uses of Emergency Powers

Emergency powers **cannot** be used to:

- influence elections
- modify token supply
- alter Tree Asset rules
- grant governance power to commercial actors
- punish political opponents
- manipulate DAO outcomes
- interfere with legitimate proposals

Any such attempt is unconstitutional.

8.10 Emergency Powers & Tree Assets

Tree Assets may only be frozen during emergencies if:

- the Steward is removed
- a NODLR is removed for cause
- identity fraud is detected
- regulatory action requires it

Emergencies cannot:

- alter Tree depth
 - alter Tree revenue
 - transfer Tree ownership
-

8.11 Summary of Emergency Powers

- IM handles technical emergencies
- Governance Board handles governance emergencies
- Emergencies are temporary and auditable
- DAO oversight resumes after emergencies
- Emergency powers cannot alter governance fundamentals
- Tree Assets remain commercial and protected

SECTION 9 — GOVERNANCE BOARD & ROLE EVOLUTION

This section defines the Governance Board, its responsibilities, its relationship to the DAO, and the long-term evolution of governance roles as the Wnode Mesh matures.

The Governance Board is the **operational governance layer** that ensures DAO decisions are implemented correctly, safely, and in alignment with the Constitution.

9.1 Purpose of the Governance Board

The Governance Board exists to:

- **Validate Proposals** before they reach the DAO
- **Oversee Steward Operations**
- **Supervise the Treasury**
- **Coordinate with the IM**
- **Ensure Constitutional Compliance**
- **Protect the Mesh from Governance Abuse**

The Governance Board is the bridge between:

- DAO decisions
 - Steward operations
 - Infrastructure Manager technical execution
-

9.2 Composition of the Governance Board

The Governance Board consists of:

- the **four initial founders**, including the Founder
- the Six future elected Partners

During the founding period:

- all Governance Board members are **Founder-appointed**
- the Founder is the **Initial Governance Board Member**

This ensures stability during early growth.

9.3 Governance Board Powers

The Governance Board may:

- **Request Revisions** to proposals
- **Oversee Steward Performance**
- **Oversee IM Performance**
- **Supervise Treasury Actions**
- **Publish Governance Reports**

The Governance Board **cannot**:

- override the DAO
- alter the Constitution
- modify token supply
- interfere with owner rights
- interfere with IM emergency actions

9.4 Governance Board Limitations

The Governance Board **must not**:

- use its position for personal gain
- influence DAO voting
- manipulate proposal outcomes
- interfere with Tree Assets
- override the Stewardship Licence
- override Founder Board decisions

The Governance Board is an **operational**, not political, authority.

9.5 Governance Board

The Governance Board is made up of :-

- four initial founders
 - six appointed Partners
-

9.6 Eligibility for Governance Board Membership

To serve on the Governance Board, an individual must:

- hold a **Voting Soul**
 - have no active sanctions
 - have no conflicts of interest
 - pass compliance checks
 - commit to transparency and neutrality
 - Maintain at least 1 active Node
-

9.7 Removal of Governance Board Members

A Governance Board member may be removed for:

- misconduct
- corruption
- repeated negligence
- violation of constitutional duties
- conflict of interest
- regulatory breach

Removal requires:

- a 66% Governance Board vote **or**
- a 87% DAO vote

9.8 Governance Board Transparency Requirements

The Governance Board must:

- publish Bi annual reports
- disclose conflicts of interest
- maintain public proposal logs
- maintain public voting records
- maintain public Treasury oversight reports

Transparency is mandatory.

9.9 Relationship Between Governance Board & Founder Board

The Governance Board:

- manages operations
- validates proposals
- supervises the Steward and IM

The Founder Board:

- protects the Constitution
- appoints/removes the Steward
- holds emergency powers
- safeguards long-term integrity

The Governance Board **cannot override** the Founder Board.

9.10 Relationship Between Governance Board & DAO

The Governance Board:

- may prepares proposals for DAO voting
- ensures DAO decisions are implemented
- provides operational oversight

The DAO:

- approves constitutional amendments
- controls the Treasury

- is the sovereign community authority

The Governance Board **cannot override** the DAO.

9.11 Summary of Governance Board Rules

- Governance Board = operational oversight
- Founder Board = constitutional guardianship
- DAO = sovereign community governance
- Governance Board validates proposals
- Governance Board cannot override DAO
- Transparency is mandatory

SECTION 10 — CONSTITUTIONAL SAFEGUARDS & FOUNDER PROTECTIONS

This section defines the constitutional protections that ensure the long-term stability, integrity, and decentralisation of the Wnode Mesh.

It establishes the rights that **cannot** be altered by the DAO, the limits of governance power, and the permanent protections granted to the Constitution itself.

These safeguards prevent governance capture, malicious amendments, and structural instability.

10.1 Purpose of Constitutional Safeguards

Constitutional safeguards exist to:

- **Protect the Mesh** from governance abuse
- **Preserve Founder Rights**
- **Prevent Overreach**
- **Maintain Long-Term Stability**
- **Ensure Decentralisation**

These protections are permanent and cannot be removed by governance vote.

10.2 Immutable Constitutional Elements

The following elements are **immutable** and cannot be altered by any DAO vote, Governance Board action, or Steward action:

- **Founder identity**
- **Founder WUID**
- **Founder's 3% infinite-tree entitlement**
- **Founder Board authority**
- **Stewardship Licence structure**

- **1 Soul = 1 Vote governance model**
- **non-transferability of Souls**
- **separation of governance and commercial assets**
- **NODLR Tree depth limit (L1 + L2 only)**
- **Founder Tree infinite depth**

These elements form the constitutional backbone of the Mesh.

10.3 Founder Constitutional Rights

The Founder holds permanent constitutional rights, including:

- **Founder Board Appointment Rights**
- **Initial Infrastructure Manager Appointment**

These rights are **non-transferable, permanent, and constitutionally protected**.

10.4 Founder Board Veto Power

The Founder Board holds a **limited constitutional veto** over:

- constitutional amendments
- governance proposals that threaten network integrity
- proposals that violate regulatory requirements
- proposals that attempt to alter owner rights
- proposals that compromise long-term stability

The veto:

- must be justified in writing
- must be published to the DAO
- may be overridden only by a **100% DAO supermajority**

This ensures the veto cannot be abused while still protecting the Wnode Mesh.

10.5 Founder Board Constitutional Authority

The Founder Board:

- safeguards the Constitution
- protects the Wnode Mesh from governance capture
- appoints and removes the Steward
- oversees the Infrastructure Manager
- activates emergency powers

- ensures long-term strategic continuity

The Founder Board cannot be dissolved by the DAO.

10.6 Limits on DAO Authority

The DAO **cannot**:

- alter Owner rights
- modify the Stewardship Licence
- change Tree Asset structures
- change Soul rules
- change the 1 Soul = 1 Vote model
- dissolve the Founder Board
- override IM technical authority
- mint or burn tokens outside defined rules

The DAO is sovereign **within its constitutional boundaries**.

10.7 Limits on Governance Board Authority

The Governance Board **cannot**:

- override the DAO
- alter the Constitution
- modify token supply
- interfere with Tree Assets
- appoint or remove a Founder
- modify Soul rules

The Governance Board is an operational authority, not a constitutional one.

10.8 Limits on Steward Authority

The Steward **cannot**:

- influence governance
- modify the Constitution
- alter token supply
- change Tree Asset rules
- override the IM
- override the Governance Board
- override the Founder Board

The Steward is a commercial operator, not a political actor.

10.9 Limits on Infrastructure Manager Authority

The IM **cannot**:

- alter governance
- modify token supply
- change Tree Asset rules
- remove Souls
- override the Founder Board

The IM's authority is strictly technical.

10.10 Constitutional Amendment Process

Constitutional amendments require:

- proposal by a Voting Soul
- Governance Board validation
- **100% DAO approval**
- **50% quorum**
- **Founder Board review**
- no violation of immutable elements

If the amendment passes all steps:

- it becomes part of the Constitution
 - it is published publicly
 - it is permanently archived
-

10.11 Prohibited Constitutional Amendments

The DAO may **not** propose amendments that:

- alter owner identity or rights
- alter the 1 Soul = 1 Vote model
- allow token-based voting
- allow governance token minting
- change Tree depth rules
- remove the Founder Board
- remove the IM
- grant governance power to commercial assets
- allow governance power to be bought or sold

Any such proposal is automatically invalid.

10.12 Constitutional Integrity & Enforcement

The Constitution is enforced by:

- the Steward
- the Founder Board
- the Governance Board
- the Infrastructure Manager
- the DAO (within its boundaries)

Violations may result in:

- proposal invalidation
- emergency action
- role removal
- Tree freezing

10.13 Summary of Constitutional Safeguards

- Founder rights are permanent
- Immutable elements cannot be changed
- DAO authority is powerful but bounded
- Founder Board protects long-term stability
- Governance Board handles operations
- Steward handles commercial operations
- IM handles technical integrity
- Constitution can be amended, but not corrupted

SECTION 11 — SANCTIONS, FREEZING & DISCIPLINARY ACTIONS

This section defines the rules, procedures, and safeguards for freezing Souls, suspending nodes, freezing Tree Assets, and applying sanctions to individuals or entities who violate the Constitution, platform rules, or regulatory requirements.

These mechanisms protect the Mesh from fraud, abuse, and malicious behaviour while ensuring fairness, due process, and transparency.

11.1 Purpose of Sanctions & Freezing

Sanctions exist to:

- **Protect the Wnode Mesh**
- **Preserve Governance Integrity**
- **Prevent Fraud & Abuse**

- **Ensure Compliance**
- **Maintain Network Stability**

Sanctions are **not** political tools and cannot be used to punish dissent or influence governance.

11.2 Types of Sanctions

Sanctions include:

- **Node Suspension**
 - **NODLR Status Removal**
 - **Soul Freezing**
 - **Tree Freezing**
 - **Temporary Governance Suspension**
 - **Permanent Ban**
-

11.3 Grounds for Sanctions

Sanctions may be applied for:

- identity fraud
- operating fraudulent nodes
- repeated uptime violations
- malicious behaviour
- governance manipulation
- regulatory violations
- security breaches
- attempts to bypass verification
- attempts to influence governance through commercial assets
- attempts to compromise the Mesh

Sanctions **cannot** be applied for:

- disagreement
 - criticism
 - political views
 - voting choices
-

11.4 Due Process Requirements

Before sanctions are applied (except in emergencies):

- the individual must be notified
- evidence must be presented
- the individual must have the opportunity to respond

- the Governance Board must review the case
- the final decision must be documented

Emergency actions (Section 8) may bypass due process temporarily, but must be reviewed afterward.

11.5 Node Suspension

Nodes may be suspended for:

- repeated downtime
- hardware non-compliance
- security risks
- fraudulent behaviour
- regulatory requirements

Suspended nodes:

- stop earning rewards
 - may trigger NODLR review
 - may be reinstated after compliance is restored
-

11.6 NODLR Status Removal

NODLR status may be removed for:

- identity fraud
- malicious node operation
- repeated non-compliance
- regulatory violations
- attempts to manipulate governance

Consequences:

- loss of NODLR privileges
 - freezing of NODLR Affiliate Tree
 - **Voting Soul becomes frozen**
 - loss of governance rights until reinstated
-

11.7 Soul Freezing

A Soul is **permanent** and **cannot be revoked or deleted**.

However, a Soul may be **frozen** for:

- identity fraud
- governance manipulation

- malicious behaviour
- regulatory violations
- repeated severe misconduct

A Frozen Soul:

- loses all governance rights
- cannot vote
- cannot propose
- cannot upgrade to Voting Soul
- may not operate nodes
- may not expand Trees
- may not open a new account

A Frozen Soul **may be unfrozen** after review and reinstatement.

Souls are **never destroyed**.

11.8 Tree Freezing (Sanction-Based)

Tree freezing occurs when:

- a NODLR is removed
- identity fraud is detected
- regulatory action requires suspension
- malicious behaviour is confirmed

A Frozen Tree:

- remains owned
 - continues receiving existing revenue
 - cannot recruit new Level 1 members
 - may be unfrozen after review
-

11.9 Temporary Governance Suspension

A Voting Soul may be temporarily suspended from governance for:

- ongoing investigations
- regulatory requirements
- suspected fraud
- suspected manipulation

Suspension:

- removes voting rights temporarily
- does not freeze Trees

- does not remove NODLR status
 - must be time-limited
-

11.10 Permanent Ban

Permanent bans are reserved for:

- severe fraud
- repeated malicious behaviour
- coordinated attacks
- regulatory orders
- attempts to compromise the Mesh

A permanent ban:

- suspends all nodes
- freezes all L1 Tree expansion
- freezes the Soul permanently
- blocks future participation

Permanent bans require:

- Founder Board confirmation
-

11.11 Appeals Process

Individuals may appeal sanctions.

Appeals must be:

- submitted in writing
- reviewed by the Founder Board (1 member will suffice)
- decided within 30 days

Emergency sanctions may be appealed after the emergency ends.

11.12 Transparency Requirements

All sanctions must be:

- logged
- timestamped
- linked to WUIDs
- published (with privacy protections)
- auditable by the DAO

Personal identity information is never disclosed.

11.13 Prohibited Uses of Sanctions

Sanctions **cannot** be used to:

- punish political disagreement
- influence DAO voting
- retaliate against criticism
- manipulate governance outcomes
- interfere with legitimate proposals
- punish commercial competition

Any such use is unconstitutional.

11.14 Summary of Sanctions & Freezing Rules

- Souls are **permanent** and **cannot be revoked**
- Souls may be **frozen** but never deleted
- NODLR removal freezes Trees and freezes Voting Soul
- Due process is required
- Emergency actions are temporary
- Permanent bans freeze Souls and Trees
- Sanctions cannot be used politically

SECTION 12 — RATIFICATION, VERSIONING & CONTINUITY

This section defines how the Constitution is ratified, maintained, updated, and preserved across future versions of the Wnode Mesh.

It establishes the legal and procedural foundation for constitutional continuity and ensures that governance remains stable across generations.

12.1 Ratification of the Constitution

This version of the Constitution is ratified by:

- **the Founder,**
- **the Founder Board,**

and becomes binding upon:

- all Souls,
- all NODLRs,
- all node operators,
- all Stewards (present and future),

- all Governance Board members,
- all Infrastructure Managers,
- all DAO participants.

Ratification is permanent and does not require DAO approval.

12.2 Constitutional Authority

This Constitution is the **highest legal and governance authority** within the Wnode Mesh.

It supersedes:

- DAO proposals
- Governance Board decisions
- Stewardship Licence terms
- operational policies
- commercial agreements
- platform rules

except where explicitly stated otherwise.

No entity may override the Constitution.

12.3 Versioning of the Constitution

The Constitution follows a formal versioning system:

- **v1.x** — Foundational drafts
- **v2.x** — Hybrid governance model (this version)
- **v3.x and beyond** — DAO-driven evolution

Each version must include:

- version number
 - date of ratification
 - summary of changes
 - signatures or confirmations from required authorities
-

12.4 Amendment Recording

All amendments must be:

- **Recorded in the Amendment Ledger**
- timestamped
- linked to WUIDs
- publicly accessible

- permanently archived

The Amendment Ledger is the canonical record of constitutional evolution.

12.5 Continuity Across Stewardship Transitions

When a Steward is replaced:

- the Constitution remains unchanged
- Founder rights remain unchanged
- Tree rules remain unchanged
- governance rules remain unchanged
- DAO authority remains unchanged

Steward transitions **cannot** trigger constitutional changes.

12.6 Continuity Across Governance Board Transitions

When Governance Board members change:

- constitutional authority remains intact
- DAO sovereignty remains intact
- Founder Board authority remains intact
- IM authority remains intact

Governance Board transitions **cannot** alter constitutional structure.

12.7 Continuity Across Infrastructure Manager Transitions

When the IM changes:

- technical authority transfers
- emergency powers transfer
- verification duties transfer

But:

- governance rules remain unchanged
- Founder rights remain unchanged
- Tree rules remain unchanged

IM transitions **cannot** alter governance or constitutional rights.

12.8 Successor Governance

If the Founder becomes unable to perform constitutional duties:

- the **Founder Board** assumes all Founder constitutional powers
- the Founder Board may appoint a **Successor Founder**
- the Successor Founder inherits all constitutional rights
- the Founder WUID remains historically preserved

This ensures long-term continuity of constitutional authority.

12.9 Legal Jurisdiction

The Constitution is governed by the laws of:

England & Wales

This applies to:

- disputes
 - regulatory compliance
 - contractual interpretation
 - Stewardship Licence enforcement
 - Founder rights
 - governance rights
-

12.10 Binding Nature of the Constitution

All participants agree that:

- participation in the Mesh
- operation of nodes
- holding of Souls
- holding of Trees
- participation in governance
- use of the platform

constitutes acceptance of this Constitution.

12.11 Supremacy Clause

If any rule, policy, or agreement conflicts with this Constitution:

the Constitution prevails.

This includes:

- DAO proposals
- Governance Board decisions
- Stewardship Licence terms

- operational policies
- commercial agreements

No subordinate rule may override the Constitution.

12.12 Finality of Ratification

Upon ratification:

- this Constitution becomes the governing document of the Wnode Mesh
- all prior drafts are superseded
- all participants are bound by its terms
- all future changes must follow Section 10 (Amendment Rules)

12.13 Summary of Ratification & Continuity Rules

- Constitution is the supreme authority
 - Ratified by Founder
 - DAO cannot override constitutional fundamentals
 - Steward, Governance Board, and IM transitions do not affect the Constitution
 - Successor Founder may be appointed
 - All amendments must be recorded
 - Participation = acceptance
 - Constitution prevails over all other rules
-